

19STCV05324 19STCV05324

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Case Number: 19STCV05324 Hearing Date: July 8, 2026 Dept: 32

CENTRAVEL, INC.,

Plaintiff,

v.

FERDINAND LIPANA, et

al.,

Defendants.

Case No.: 19STCV05324

Hearing Date: July 8, 2026

[TENTATIVE]

order RE:

plaintiff's motions to compel further
responses (CRS# 1113, 0205)

BACKGROUND

On February 15, 2019, Plaintiff

Centravel, Inc. filed this action against Ferdinand Lipana, Bernadine Lipana, Lawrence Lipana, Lancelle Lipana, and Sandrine Lipana. Lawrence, Lancelle, and Sadrine Lipana were subsequently dismissed from the lawsuit.

On August 15, 2022, the Court entered a stipulated judgment in favor of Plaintiff against Defendants Ferdinand Lipana and Bernadine Lipana.

On June 3, 2026, Plaintiff filed the instant two motions to compel Ferdinand's and Bernadine's further responses to post-judgment Requests for Production, Set Two. Defendants filed a combined opposition on June 16, 2026. Plaintiff filed a combined reply on June 30, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

Plaintiff's motion and exhibits demonstrate good cause for the requested documents. (See Ponce-Gomez Decl., Ex. 2, 3.) Plaintiff, as the judgment creditor, is entitled to conduct discovery into Defendants' assets and financial condition. The scope of permissible discovery is broad. (See *Li v. Yan* (2016) 247 Cal.App.4th 56, 66; *Yolanda's, Inc. v. Kahl & Goveia Commercial Real Estate* (2017) 11 Cal.App.5th 509, 515.) Defendants argue that the Set Two RFPs are duplicative. However, Plaintiff is entitled to updated and current information. Thus, there is good cause for the discovery.

Defendants served a joint response to the RFPs, consisting of the following four objections: (1) violation of 120-day "blackout period;" (2) lack of standing; (3) pending appeal; and (4) financial privacy. (Ponce-Gomez Decl., Ex. 5.) None of these objections has merit.

First, the Court has already rejected Defendants' contentions regarding the 120-day period. Specifically, the Set Two RFPs were served in April 2026, more than 120 days after Defendants responded to the first set of discovery in July 2025, and more than 120 days after the judgment debtor examinations in October 2025. Defendants erroneously rely on

their December 12, 2025 production of documents, which was not in response to any discovery request and is thus not relevant to the 120-day rule. In any case, the Set Two RFPs were served more than 120 days after December 12, 2025. Thus, Plaintiff has complied with Code of Civil Procedure section 708.030.

Second, the Court has stated multiple times that Plaintiff retains standing to pursue the action and enforce judgment despite being dissolved. The law is clear that “[a] corporation which is dissolved nevertheless continues to exist for the purpose of winding up its affairs, prosecuting and defending actions by or against it and enabling it to collect and discharge obligations, dispose of and convey its property and collect and divide its assets, but not for the purpose of continuing business except so far as necessary for the winding up thereof.” (Corp. Code, § 2010(a).)

Third, Defendants’ Petition for Writ of Supersedeas has been denied. (Ponce-Gomez Decl., Ex. 8.) Thus, there is no basis to stay discovery.

Fourth, privacy does not preclude the subject discovery. As stated above, the scope of judgment debtor discovery is broad. The need for disclosure outweighs the privacy interests. (See Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 552.)

In sum, Defendants’ objections are meritless, and Defendants have failed to provide any valid justification for refusing to respond to the subject discovery. Thus, an order compelling responses, with sanctions, is warranted. Plaintiff requests \$1,487.50 per motion. (Ponce-Gomez Decl. ¶ 12.) The Court finds that this is the reasonable amount for both motions combined.

CONCLUSION

Plaintiff’s motions to compel further responses are GRANTED. Defendants Ferdinand Lipana and Bernadine Lipana shall provide further responses to the subject Requests for Production, Set Two within 30 days of today. The Court sanctions Defendants, jointly and severally, in the total amount of \$1,487.50, to be paid within 30 days of today.